

Amendment No. 2 to HB1987

Hicks G
Signature of Sponsor

AMEND Senate Bill No. 2019*

House Bill No. 1987

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 57-3-709, is amended by deleting the following language:

The commission shall establish such fees, only pursuant to rules promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, and such fees shall be limited only to covering the costs of implementing this part and for the implementation and updating of commission information technology and software.

and substituting instead:

The commission shall establish such fees, only pursuant to rules promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, and such fees must be limited only to covering the costs of implementing this part and for the implementation and updating of commission information technology and software, or other costs as deemed necessary by the commission.

SECTION 2. Tennessee Code Annotated, Section 57-4-101(n), is amended by deleting the language "golf driving ranges" and substituting instead the language "golf courses".

SECTION 3. Tennessee Code Annotated, Section 57-4-201(b), is amended by adding the following as a new subdivision:

(4) A restricted retail business licensed pursuant to § 57-4-102(34) may provide alcoholic beverages to any lawful patron of the business, regardless of whether the

patron is receiving barbering or cosmetology services at the time the alcoholic beverages are served. The provision of alcoholic beverages pursuant to a restricted retail business license is an accessory use, and such use does not, by itself, require a separate business classification, occupancy designation, or physical separation within the premises, if all other statutory requirements are satisfied.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.